RATIO / CASE READING SHEET

Mirzakhodzhaev v. Kyrgyzstan

UN Human Rights Committee | CCPR/C/130/D/2526/2015 | Kyrgyzstan | 2020

Public-reference AI draft | source quotes and PDF pages verified; interpretation needs review

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Forum and procedural stage

The communication was filed before the UN Human Rights Committee under the Optional Protocol, identified as communication No. 2526/2015, and the Committee issued its Views on 6 November 2020.

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Material facts

The author, an Uzbek–Kyrgyz citizen, was sentenced in absentia by the Jalalabad City Court to 14 years for alleged separatist acts, without prior notice or legal representation; subsequent appeals to the Regional Court and Supreme Court were rejected.

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Issue and actual outcome

The author alleged violations of ICCPR arts 14(1), 14(2), 14(3)(d) & (e) and related provisions. The Committee concluded that the communication was admissible and found violations of the fair-trial guarantees, adopting its Views accordingly.

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Deciding body's reasoning

The Committee held that trial in absentia, without proper notice and opportunity to defend, breaches article 14(3)(d) & (e); it also determined that the parliamentary resolution prejudicing the presumption of innocence violated article 14(2).

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General comparison factors and limits

The Committee noted that absentia trials may be permissible only when the accused knowingly waives presence after adequate notice; any public statements presuming guilt or legislative commentary that influences the judiciary exceed permissible limits.

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